

IN THE HOUSE OF REPRESENTATIVES

HOUSE JOINT MEMORIAL NO. 20

BY EDUCATION COMMITTEE

A JOINT MEMORIAL

TO THE PRESIDENT OF THE UNITED STATES, THE PRESIDENT OF THE UNITED STATES SENATE, THE SPEAKER OF THE UNITED STATES HOUSE OF REPRESENTATIVES, THE SECRETARY OF STATE OF THE UNITED STATES, AND THE CONGRESSIONAL DELEGATION REPRESENTING THE STATE OF IDAHO IN THE CONGRESS OF THE UNITED STATES.

We, your Memorialists, the House of Representatives and the Senate of the State of Idaho assembled in the Second Regular Session of the Sixty-eighth Idaho Legislature, do hereby respectfully represent that:

WHEREAS, the State of Idaho is constitutionally obligated to maintain a general, uniform, and thorough system of public, free common schools; and

WHEREAS, federal immigration policy and enforcement are powers vested exclusively in the United States Congress; and

WHEREAS, pursuant to the decision of the United States Supreme Court in *Plyler v. Doe*, 457 U.S. 202 (1982), states are required to provide access to public K-12 education to students residing within their borders regardless of immigration status; and

WHEREAS, the fiscal responsibility for complying with such federal constitutional requirements rests primarily with state and local governments, without a dedicated federal funding stream tied to immigration status or lawful presence; and

WHEREAS, the average per-pupil expenditure in the State of Idaho is approximately \$11,000 per student per year, and the aggregate cost to Idaho of educating students whose presence in the United States is governed by federal immigration policy represents a significant and ongoing financial commitment borne primarily by state and local taxpayers; and

WHEREAS, students requiring English language acquisition services, remedial instruction, and supplemental academic supports often generate additional instructional costs beyond base per-pupil funding; and

WHEREAS, federal funding under Title I of the Elementary and Secondary Education Act (ESEA), intended to support low-income students, and Title III of ESEA, intended to support English learners, does not fully reimburse states or school districts for the actual costs of providing required services; and

WHEREAS, the allocation formulas under Title I and Title III of ESEA are not designed to offset the full fiscal impact on states arising from federal immigration policy decisions or constitutional requirements; and

WHEREAS, Idaho's local school districts must balance constitutional educational obligations with limited state and local revenues, creating measurable budgetary pressures that may affect staffing levels, class sizes, and program offerings for all students; and

WHEREAS, principles of fiscal federalism support the proposition that when federal policy decisions generate substantial financial obligations

1 for states, the federal government should provide commensurate funding sup-
2 port.

3 NOW, THEREFORE, BE IT RESOLVED by the members of the Second Regular Ses-
4 sion of the Sixty-eighth Idaho Legislature, the House of Representatives and
5 the Senate concurring therein, that:

6 (1) The Idaho Legislature respectfully urges the Congress of the United
7 States to establish a dedicated federal reimbursement or block grant program
8 to assist states in covering the costs of educating students residing in the
9 United States regardless of immigration status. Such funding should be de-
10 signed to supplement, not supplant, existing Title I and Title III ESEA al-
11 locations and should reflect actual per-pupil expenditures incurred by the
12 State of Idaho;

13 (2) Congress should review and revise federal education funding for-
14 mulas to ensure that states disproportionately impacted by federal immigra-
15 tion policy receive equitable fiscal support; and

16 (3) Congress should commission a comprehensive fiscal impact study
17 evaluating the aggregate cost to states of complying with federal constitu-
18 tional and immigration-related educational obligations.

19 BE IT FURTHER RESOLVED that the Chief Clerk of the House of Representa-
20 tives be, and she is hereby authorized and directed to forward a copy of this
21 Memorial to the President of the United States, the President of the United
22 States Senate, the Speaker of the United States House of Representatives,
23 the Secretary of State of the United States, and the congressional delega-
24 tion representing the State of Idaho in the Congress of the United States.